

		Likewise, Respondent's argument that the petition fails to state a cause of action is based on extrinsic evidence. In ruling on a motion for judgment on the pleadings, all material facts properly pleaded, and reasonable inferences, must be accepted as true. (<i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 966-67.) A pleading is adequate if it contains a reasonably precise statement of the ultimate facts, in ordinary and concise language, and with sufficient detail to acquaint a defendant with the nature, source and extent of the claim. (Code Civ. Proc. § 425.10(a)(1); <i>Leek v. Cooper</i> (2011) 194 Cal.App.4th 399, 413; <i>Doe v. City of Los Angeles</i> (2007) 42 Cal.4th 531, 549-50.) Respondent's arguments go the merits of the claims pled in Amended Petition, not to the sufficiency of the pleading. Based on the foregoing, the "motion to dismiss" is denied as procedurally defective; the court exercises its discretion to treat the motion as a motion for judgment on the pleadings and denies such motion. This ruling is without prejudice to Respondent's right to seek the relief requested in a procedurally proper manner. Counsel for Respondent is ordered to give notice.
01378180	Street - Trust	TENTATIVE RULING Case: Street - Trust 01378180 Calendar No.: 2 Date: 06/03/26 MOTION FOR SUMMARY JUDGMENT OR SUMMARY ADJUDICATION (ROA 195) Petitioners Chelsea Vanderpool and Courtney Vanderpool (collectively, "Petitioners") move for summary judgment or, in the alternative, summary adjudication as to the claim in their Amended Petition (ROA 62) that the Lemon Street Irrevocable Trust (the "Trust") should be modified. The motion is opposed by the settlor and former trustee of the Trust, Richard Vanderpool, and the current trustee of the Trust, Randall Beckman. (ROAs 170 and 173.) Petitioners' request for judicial notice (ROA 109) is granted as to Exhibits A and B.